

DOCUMENT CHECKLIST
COMMERCIAL REAL ESTATE ACQUISITION
ACQUISITION OF 88 WESTBROOK PLAZA, CALDWELL CITY, TX 77036

TRANSACTION REFERENCE: ACQ-2024-PSL-0087
Prepared by: Meridian Title and Escrow Services LLC

Date Prepared: October 15, 2024

Buyer: Westbrook Commercial Holdings LLC

Seller: Alcott-Meridian Properties Inc.

Escrow Officer: Howard V. Kincaid, Jr.

Expected Closing Date: November 30, 2024

SECTION A — TITLE AND OWNERSHIP DOCUMENTS

- [X] 1. Preliminary Title Report Received: Oct 10, 2024
- [X] 2. Current Vesting Deed (Seller) Received: Oct 11, 2024
- [] 3. Seller's Statement of Title PENDING — due Oct 22, 2024
- [X] 4. Survey — ALTA/NSPS Land Title Survey Received: Oct 8, 2024
- [] 5. Release of Mortgage Lien (First National Bank) PENDING — lender payoff requested Oct 14, 2024; payoff statement expected Oct 18, 2024
- [X] 6. HOA/Property Association Estoppel Certificate Received: Oct 9, 2024

SECTION B — ENTITY AND AUTHORITY DOCUMENTS

- [X] 7. Buyer Entity: Articles of Organisation Received: Oct 1, 2024
- [X] 8. Buyer Entity: Operating Agreement Received: Oct 1, 2024
- [X] 9. Buyer Entity: Certificate of Good Standing Received: Oct 2, 2024
- [] 10. Buyer Entity: Resolution Authorising Purchase MISSING — to be provided by Buyer's counsel no later than Oct 25, 2024
- [X] 11. Seller Entity: Certificate of Good Standing Received: Oct 3, 2024
- [X] 12. Seller Entity: Resolution Authorising Sale Received: Oct 11, 2024
- [] 13. Seller Entity: IRS Form W-9 PENDING — requested Oct 12

SECTION C — FINANCIAL AND LENDING DOCUMENTS

- [X] 14. Purchase and Sale Agreement (fully executed) Received: Sept 28, 2024
- [X] 15. Loan Commitment Letter — Horizon Bank NA Received: Oct 7, 2024
- [] 16. Loan Agreement (final form) PENDING — expected Oct 20
- [] 17. Deed of Trust — Horizon Bank NA PENDING — expected Oct 25
- [X] 18. Proof of Earnest Money Deposit (\$125,000) Received: Sept 30, 2024
- [] 19. Closing Disclosure (HUD-1 equivalent) PENDING — to be prepared by Meridian Title no later than Nov 15, 2024

SECTION D — DUE DILIGENCE DOCUMENTS

- [X] 20. Phase I Environmental Site Assessment Received: Oct 5, 2024
(No Recognised Environmental Conditions found)
- [] 21. Phase II Environmental Site Assessment NOT REQUIRED per Phase I
- [] 22. Property Condition Report PENDING — inspector scheduled Oct 18, 2024; report expected Oct 25, 2024
- [X] 23. Zoning Compliance Letter — City of Caldwell Received: Oct 10, 2024
- [X] 24. Lease Abstracts (all 4 existing tenants) Received: Oct 12, 2024
- [] 25. Tenant Estoppel Certificates (4 of 4) PARTIAL — 2 of 4 received; outstanding tenants: Unit 4B (Greystone Consulting) and Unit 6A (open) Deadline for remaining: Oct 28, 2024
- [X] 26. Rent Roll (current as of Oct 1, 2024) Received: Oct 11, 2024
- [] 27. Operating Expense Statement (trailing 12 mo.) PENDING — due from Seller